

		section 2015.5 allows declarations under penalty of perjury when “subscribed” by the party or witness. The term “subscribe” means “to sign with one’s own hand.” (<i>Doe v. Superior Court</i> (2011) 194 Cal.App.4th 750, 754.) Here, the declaration is improperly signed by Cynthia Ikhanoff of facts apparently personally known by Nina Ilkhanoff. The court will need admissible evidence in the form of a declaration by someone with personal knowledge of the facts presented or facts of which the court may properly take judicial notice. The court also will require much more detail than is provided in the current declaration, which is highly conclusory and fails to establish the necessary foundation for many of the facts allegedly presented. The court therefore CONTINUES the motion as set forth above. At least 16 court days before the next hearing date, Claimant must (1) submit admissible evidence showing entitlement to the surplus funds, i.e., Claimant’s own sworn declaration or the sworn declaration of her power of attorney Cynthia Ilkhanoff, attesting to facts within her own personal knowledge and attaching a copy of the power of attorney; and (2) file a proof of service of all moving papers on all potential claimants identified in the trustee’s declaration at the addresses specified therein - ROA 2 at Ex. C. Counsel for Claimant is ordered to give notice.
4.	<i>In Re: 17150 Fremont Lane, Yorba Linda, CA 92886</i> <i>2025-01526961</i>	On November 13, 2025, petitioner Clear Recon Corp (Petitioner) filed the petition regarding unresolved claims and deposit of undistributed surplus proceeds of trustee’s sale under Civil Code section 2924j. Petitioner filed the petition following a trustee’s sale pursuant to a deed of trust conducted on January 22, 2024, regarding the property located at 17150 Fremont Lane, Yorba Linda, California 92886 (Property). After paying off the trust deed, all senior liens, and undisputed claims, Petitioner sought to deposit the surplus funds of \$393,366.84 with the court and be discharged from responsibility for distribution of the surplus funds. The court conducted a hearing on the petition on March 5, 2026. Prior to that hearing, claimant Xin Yang (Yang) filed a claim to the entirety of the surplus funds. At the hearing, the court granted the petition, ordered Petitioner to deposit the surplus funds with the court, and set today’s hearing to address any and all claims to the surplus funds. The court explained it could not grant Yang’s claim at that time because the code required the hearing on any claims to surplus funds to be conducted after the funds are deposited

		with the court and after the court clerk gave notice to all potential claimants. The court further explained Yang could stand on his original claim or supplement additional information. On or about March 19, 2026, Petitioner deposited the surplus funds with the court. The second paragraph of Civil Code section 2924j(d) states, "Within 90 days after deposit with the clerk, the court shall consider all claims filed at least 15 days before the date on which the hearing is scheduled by the court, the clerk shall serve written notice of the hearing by first-class mail on all claimants identified in the trustee's declaration at the addresses specified therein." Here, the clerk mailed notice to Yang and the other potential claimant, Shou Jin (Jin), at the property that was sold. That is the address that was listed by Petitioner, but that is not sufficient given the property has been sold and additional addresses were provided in the various claims Yang and Jin submitted to the court and Petitioner. The court notes Petitioner also served notice of today's hearing on Jin and Yang, but it was served by email alone. Civil Code section 2924j(d) requires notice to be served by first class mail. Email may be acceptable if that is the only address for a potential claim, but here there are both email and mailing addresses for Jin and Yang. As a result, the hearing on Yang's and any other claims must be CONTINUED TO THURSDAY, JULY 23, 2026, AT 2:00 P.M., IN DEPARTMENT C23. The court directs the clerk to serve notice of the hearing by first class mail and electronic service to the following individuals at all the following addresses: <u>Xin Yang</u> c/o Law Offices of James Zhou 17700 Castleton Street, Suite 568 City of Industry, CA 91748 jzhou@zhoulawoffices.com yangxin_1231@aliyun.com <u>Shou Jin</u> c/o Minnie Zhao 3283 Red Pine Road Yorba Linda, CA 92886 shuojin@myyahoo.com lawyerbai@vip.sina.com
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		minniezh2008@yahoo.com The clerk is directed to give notice as described above.
5.	<i>Petition of Strom</i> 2025-01481925	Before the court is the amended petition of petitioner Philip Gabriel Strom (Petitioner) seeking "declarative relief acknowledging one same person." As set forth more fully below, the petition is DENIED WITHOUT PREJUDICE. By this petition, Petitioner seeks an order declaring his ancestors had presented under the anglicized version of their birth names and are the same person, i.e., deceased great grandmother, Mary Antoinette Bianchi, presented as Mary Whilte; deceased great-great grandfather, Cesidio Bianchi, presented as Jesse White, and his great-great grandmother, Genoveffa Palma, presented as Genevieve Palmer. This relief is sought to enable Petitioner to obtain Italian citizenship based on these ancestors. On March 2, 2026, the court noted the original petition filed on May 12, 2025, lacked any authority, statutes, codes or case law, and any amended petition would need to include such authority and be supported by certified copies or originals of any documents. (ROA 9.) In response, Petitioner filed the amended petition seeking the same relief as the original petition, and citing Code of Civil Procedure section 1060 and related case law on declaratory relief pursuant to that statute. "To qualify for declaratory relief under section 1060, plaintiffs [are] required to show their action . . . presented two essential elements: '(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the rights or obligations of a party.' [Citation.] 'The "actual controversy" language in . . . section 1060 encompasses a probable future controversy relating to the legal rights and duties of the parties.' [Citation.] It does not embrace controversies that are 'conjectural, anticipated to occur in the future, or an attempt to obtain an advisory opinion from the court.' [Citation.]" (<i>Lee v. Silveira</i> (2016) 6 Cal.App.5th 527, 546.) "While section 1060's language "appears to allow for an extremely broad scope of an action for declaratory relief" [citation], "an actual controversy that is currently active is required for such relief to be issued and both standing and ripeness are appropriate criteria in that determination. [Citation.]" [Citation.] "One cannot analyze requested declaratory relief without evaluating the nature of the rights and duties that the plaintiff is asserting, which must follow